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Case Number: 25PSCV02811 Hearing Date: August 10, 2026 Dept: 6

CASE

NAME: Catrice

Claxton v. Leticia Miramontes Pelayo, LPCC, et al.

Defendant

Teladoc Health, Inc., D/B/A Betterhelp, Inc.'s Demurrer to First Amended
Complaint

TENTATIVE RULING

The Court SUSTAINS Defendant Teladoc

Health, Inc., D/B/A BetterHelp, Inc.'s Demurrer to the Sixth Causes of Action
of the First Amended Complaint without leave to amend.

The Court OVERRULES Defendant Teladoc

Health, Inc., D/B/A BetterHelp, Inc.'s Demurrer to the First, Third, Fourth, Fifth
and Seventh Causes of Action of the First Amended Complaint.

Defendant Teladoc Health, Inc., D/B/A

BetterHelp, Inc. is ordered to file and serve an Answer to the First Amended
Complaint within 10 calendar days of this order.

Defendant

Teladoc Health, Inc., D/B/A BetterHelp, Inc. is ordered to give notice of the
Court's ruling within five calendar days of this order.

BACKGROUND

This is a medical malpractice case. On August 4, 2025, plaintiff Catrice Claxton (Plaintiff) filed this action against defendants Leticia Miramontes Pelayo, LPCC, Teladoc Health, Inc., dba Betterhelp, Inc. (BetterHelp) (collectively, Defendants) and Does 1 to 25, alleging causes of action for medical malpractice/professional negligence, intentional infliction of emotional distress, breach of fiduciary duty, general negligence, negligent hiring, supervision, retention, and training, fraud & deceit, and sexual harassment (Civ. Code §51.9).

On May 8, 2026, after the Court sustained BetterHelp's demurrer to Plaintiff's Complaint, Plaintiff filed the operative First Amended Complaint (FAC) against the same Defendants and alleging the same causes of action.

On June 9, 2026, BetterHelp demurred to the FAC. On July 28, 2026, Plaintiff opposed the Demurrer. On August 3, 2026, BetterHelp replied to Plaintiff's Opposition.

LEGAL STANDARD

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (Code Civ. Proc., § 422.10; see *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 (*Donabedian*)). It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of ruling on the demurrer, all facts pleaded in the complaint are assumed to be true. (*Id.* at pp. 993-994.)

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demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian*, supra, 116 Cal.App.4th at p. 994.) No other extrinsic evidence can be considered. (*Ion Equip. Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881 [error for court to consider facts asserted in memorandum supporting demurrer]; see also *Afuso v. United States Fid. & Guar. Co.* (1985) 169 Cal.App.3d 859, 862, disapproved on other grounds in *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287 [error to consider

contents of release not part of court record].)

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demurrer can be utilized where the “face of the complaint” itself is incomplete or discloses some defense that would bar recovery. (*Guardian North Bay, Inc. v. Superior Court* (2001) 94 Cal.App.4th 963, 971-972.) The “face of the complaint” includes material contained in attached exhibits that are incorporated by reference into the complaint, or in a superseded complaint in the same action. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94; see also *Barnett v. Fireman’s Fund Ins. Co.* (2001) 90 Cal.App.4th 500, 505 [“[W]e rely on and accept as true the contents of the exhibits and treat as surplusage the pleader’s allegations as to the legal effect of the exhibits”].)

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demurrer can only be sustained when it disposes of an entire pleading, cause of action, or affirmative defense. (See Cal. Rules of Court, rule 3.1320, subd. (a); *Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119; *Kong v. City of Hawaiian Gardens Redev. Agency* (2003) 108 Cal.App.4th 1028, 1046-1047.)

PRELIMINARY ISSUES

“Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses.” (Cal. Rules of Court, rule 3.1320, subd. (a).) BetterHelp’s Demurrer fails to comply with this requirement by combining the grounds for multiple causes of action into the same paragraphs. (Demurrer, p. 3.) The Court admonishes BetterHelp to comply with the California Rules of Court going forward.

The Court also notes that BetterHelp cites to terms and conditions from its website, but the Court cannot consider them because they are not alleged in the FAC, nor did BetterHelp request the Court take judicial notice of them. (Demurrer, 14:22-27; see generally, FAC; *Donabedian*, supra, 116 Cal.App.4th at p. 994.) Such terms and conditions are therefore beyond the scope of this Demurrer.

DISCUSSION

Meet and Confer

The Court finds BetterHelp's efforts to meet and confer before bringing this Demurrer sufficient. (Nieland Decl., ¶ 2; Code Civ. Proc., § 430.41, subd. (a).)

Grounds for Demurrer

BetterHelp demurs to the First, Third, Fourth, Fifth, Sixth, and Seventh Causes of Action of the FAC on the grounds that they fail to state facts sufficient to constitute a cause of action.

First Cause of Action – Medical Malpractice/Professional Negligence

To state a cause of action for medical malpractice or professional negligence, the plaintiff must allege facts demonstrating “(1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional's negligence.” [Citation.]” (Hanson v. Grode (1999) 76 Cal.App.4th 601, 606.)

BetterHelp argues that this claim fails because Plaintiff pleads no facts establishing a basis to impute Pelayo's alleged misconduct to BetterHelp, which it describes as a technology platform rather than a medical provider. BetterHelp contends the FAC's relationship allegations remain conclusory and contradictory, pleading that Pelayo was “an employee, agent and/or independent contractor,” while the pleading itself acknowledges Pelayo is an independent contractor. BetterHelp argues the FAC alleges no facts on the dispositive right-to-control factors and that Pelayo's Form Interrogatory reference to “employment” is a legal conclusion, not a fact showing control over her clinical work. BetterHelp further contends the FAC alleges no specific conduct by BetterHelp that fell below any standard of care and concedes Pelayo was and remains licensed, undermining any claim that BetterHelp knew or should have known she was unqualified.

In opposition, Plaintiff contends that whether Pelayo was an employee, agent, or independent contractor is a quintessential question of fact that cannot be resolved on demurrer. Plaintiff argues that BetterHelp assigned Pelayo to treat her, that BetterHelp owed a duty of care in selecting,

screening, and supervising its providers, and that it breached that duty. Plaintiff cites allegations of direct billing from BetterHelp, Pelayo's listing as the "provider," and BetterHelp's holding itself out as supplying vetted, qualified, and licensed providers as inducing Plaintiff's belief that Pelayo was BetterHelp's employee. Plaintiff contends BetterHelp had superior access to the facts about the relationship at the pleading stage.

As noted in the Court's prior ruling, sexual misconduct generally falls outside the scope of employment. (See Order Re: Court Ruling (4/16/26); *Juarez v. Boy Scouts of Am., Inc.* (2000) 81 Cal.App.4th 377, 394 (*Juarez*), disapproved on other grounds by *Brown v. USA Taekwondo* (2021) 11 Cal.5th 204; *Lisa M. v. Henry Mayo Newhall Mem'l Hosp.* (1995) 12 Cal.4th 291, 301 (*Lisa M.*)) Here, the FAC still fails to allege facts demonstrating that the sexual misconduct Pelayo allegedly engaged in was an outgrowth of the employment or that there was a risk of this kind of injury inherent to this job or typical of BetterHelp's enterprise. There is nothing in the FAC that shows the alleged sexual incident had any relation to Pelayo's therapy services or that this event was foreseeable. (See FAC, ¶¶ 18-98; *Lisa M.*, supra, 12 Cal.4th at p. 302.) Sexual misconduct also falls outside the scope of an agency relationship for the same reasons. (*Lisa M.*, supra, at p. 297, fn. 2.) However, the Court cannot sustain a demurrer to part of a cause of action.

The Court finds the FAC alleges sufficient facts stating a cause of action for medical malpractice/professional negligence. The FAC does not allege that BetterHelp itself rendered medical care but it does allege that BetterHelp engaged in conduct falling below a professional standard of care. (FAC, ¶¶ 5, 9-15, 21-25.) For purposes of the demurrer, the Court accepts the facts as true. There are also sufficient facts at the pleading stage to demonstrate that Pelayo was an employee or independent contractor of BetterHelp.

The FAC also alleges facts demonstrating BetterHelp ratified Pelayo's alleged misconduct. (See *C.R. v. Tenet Healthcare Corp.* (2009) 169 Cal.App.4th 1094, 1110 (C.R.) [employer may be liable where the employer either authorized the tortious act or subsequently ratified an originally unauthorized tort].) The allegation that BetterHelp refused to investigate and did not suspend or terminate its relationship with Pelayo after the underlying incidents is sufficient as the pleading

stage. (FAC, ¶¶ 53, 56-57 85.)

Finally, as also stated in the Court's prior ruling, to the extent Plaintiff still seeks to invoke the peculiar risk doctrine, the Court still finds it unavailing. (See Order Re: Court Ruling (4/16/26).) The peculiar risk doctrine involves a "peculiar risk of unreasonable physical harm...." (Am. States Ins. Co. v. Progressive Cas. Ins. Co., (2009) 180 Cal.App.4th 18, 29.) The doctrine originated to hold landowners responsible for the negligence of contractors engaged to perform dangerous work on their property, and Plaintiff still has not provided any authority that it has ever been applied in the context of a corporation contracting with a doctor or therapist to provide "medical care" to a third party. (See Jackson v. AEG Live, LLC (2015) 233 Cal.App.4th 1156, 1183.) This is not a case of any alleged inappropriate sexual conduct with Plaintiff, but rather Plaintiff witnessing what she believes to have been Pelayo engaging in sexual conduct with a third-party during Plaintiff's online therapy session. The peculiar risk doctrine should not be expanded to include this type of situation. The FAC also does not allege Plaintiff suffered any physical harm, only that Plaintiff witnessed Pelayo engage in sexual misconduct during a remote therapy session. (FAC, ¶¶ 18-98.) However, as previously noted a demurrer cannot be sustained to only part of a cause of action.

Based on the foregoing, the Court OVERRULES the Demurrer to the First Cause of Action.

Third Cause of Action – Breach of Fiduciary Duty

To state a cause of action for breach of fiduciary duty, the plaintiff must allege facts demonstrating the existence of a fiduciary relationship, breach, and proximately caused damages. (O'Neal v. Stanislaus Cnty. Employees' Ret. Assn. (2017) 8 Cal.App.5th 1184, 1215.)

BetterHelp argues that Plaintiff alleges no facts showing that BetterHelp owed Plaintiff a fiduciary duty. BetterHelp contends a fiduciary relationship arises only where a party knowingly undertakes to act on another's behalf or enters a relationship imposing that duty by law and does not arise from ordinary arms-length business dealings. BetterHelp maintains it is not Plaintiff's therapist and that there is no basis to impute Pelayo's fiduciary obligations to a technology platform. Plaintiff argues that offering a telehealth platform does not

make BetterHelp a fiduciary.

In opposition, Plaintiff contends that mental health providers owe a fiduciary duty to their patients and that the patient-therapist relationship is inherently a fiduciary one. Plaintiff argues that BetterHelp represented it would do all things necessary to diagnose, care for, and treat her, was involved in assigning Pelayo, and that she reasonably relied on both defendants' assurances throughout the relationship. Plaintiff contends BetterHelp failed to take reasonable steps to protect her from foreseeable harm and prioritized its own interests over her safety. She further argues BetterHelp ratified Pelayo's conduct by failing to act despite knowing, or having reason to know, that Pelayo was unfit.

The Court finds the FAC alleges sufficient facts to state a cause of action for breach of fiduciary duty. While BetterHelp is correct that, as a corporation, it was not in a fiduciary relationship with Plaintiff, it can still be liable for breach of fiduciary duty based on the doctrine of respondeat superior. See *Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 133. As discussed above sufficient facts have been pled to establish such liability.

Accordingly, the Court OVERRIDES the Demurrer to the Third Cause of Action without leave to amend.

Fourth Cause of Action – General Negligence

To state a cause of action for negligence, the plaintiff must allege facts demonstrating “(1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused (4) the plaintiff's damages or injuries. [Citation.]” (*Thomas v. Stenberg* (2012) 206 Cal.App.4th 654, 662.)

BetterHelp argues that the general negligence claim is duplicative of the professional negligence claim, resting on the same alleged duties and breaches, and fails for the same reasons. BetterHelp contends the primary duty alleged, i.e., to exercise reasonable care in selecting, screening, training, supervising, and retaining providers, cannot support liability because Plaintiff pleads no facts showing BetterHelp breached it. BetterHelp argues that Pelayo's recent licensure does not show unfitness, that no law requires an LPCC to carry errors-and-omissions insurance, and that any lack of

insurance has no causal connection to the alleged injury. Plaintiff also contends that telehealth and Board of Behavioral Sciences regulations govern licensed therapists, not a non-licensed technology platform.

In opposition, Plaintiff contends that BetterHelp owed her a duty of care when she signed up for therapy directly through its platform and breached that duty by assigning her an unqualified therapist. Plaintiff argues that BetterHelp's public representations that its providers are vetted and qualified assume a duty to exercise reasonable care in ensuring those representations are accurate. Plaintiff contends BetterHelp required its providers to carry errors-and-omissions insurance but negligently failed to verify that Pelayo had it before allowing her to treat patients, which she says independently creates liability. Plaintiff argues this direct negligence harmed her and other patients.

The Court finds the FAC alleges facts sufficient to state a cause of action for general negligence. The FAC alleges facts demonstrating that BetterHelp breached its duty of care in assigning her a therapist who was not qualified to treat her and in failing to properly vet, train and supervise Pelayo.

Based on the foregoing, the Court OVERRULES the Demurrer to the Fourth Cause of Action.

Fifth Cause of Action – Negligent Hiring, Supervision, Retention, and Training

To state a cause of action for negligent hiring, supervision, retention, and training, the plaintiff must allege facts demonstrating that the employer had reason to know the employee is unfit for the job. (J.W. v. Watchtower Bible & Tract Soc'y of New York, Inc. (2018) 29 Cal.App.5th 1142, 1163 (J.W.).)

BetterHelp argues this claim independently fails because Plaintiff pleads no facts establishing that BetterHelp was Pelayo's employer or that it knew or had any reason to believe Pelayo was likely to engage in the conduct alleged. Plaintiff contends the FAC alleges no facts about what BetterHelp knew regarding Pelayo's qualifications when she was engaged, and that being recently but validly licensed is not being unfit. BetterHelp argues the "upon information and belief" allegation of prior complaints fails to identify who

complained, when, what was alleged, whether BetterHelp received the complaints, or whether they related to the misconduct now at issue. BetterHelp maintains that conclusory allegations of unfitness are not credited and that liability requires prior notice that the specific employee presented a risk of the particular harm.

In opposition, Plaintiff contends that BetterHelp was negligent in the hiring, retention, and monitoring of Pelayo and that she had a primary right to be free from negligent treatment. Plaintiff contends that, upon information and belief, there were prior patient complaints about Pelayo's performance and behavior that BetterHelp failed to investigate or remedy. Plaintiff argues BetterHelp had access to her billing statements, medical file, and communications with Pelayo, giving it a duty to supervise and investigate concerning behavior. Plaintiff further argues BetterHelp failed to conduct adequate vetting and training and allowed Pelayo to treat patients without the errors-and-omissions insurance its own policies required.

The Court finds the FAC alleges sufficient facts to state a cause of action for negligent hiring, supervision, retention, and training. The FAC alleges BetterHelp knew of prior complaints about Pelayo's performance and behavior and that it failed to investigate the misconduct with Plaintiff and continued to offer her services. These allegations are sufficient at the pleading stage. (FAC, ¶¶ 248-297.)

Based on the foregoing, the Court **OVERRULES** the Demurrer to the Fifth Cause of Action.

Sixth Cause of Action – Fraud & Deceit

To state a cause of action for fraudulent misrepresentation, the plaintiff must allege facts demonstrating: "(1) the defendant represented to the plaintiff that an important fact was true; (2) that representation was false; (3) the defendant knew that the representation was false when the defendant made it, or the defendant made the representation recklessly and without regard for its truth; (4) the defendant intended that the plaintiff rely on the representation; (5) the plaintiff reasonably relied on the representation; (6) the plaintiff was harmed; and (7) the plaintiff's reliance on the defendant's representation was a substantial factor in causing that harm to the plaintiff." (Graham v. Bank of Am., N.A. (2014) 226 Cal.App.4th 594, 605-606, internal quotation marks and citation omitted.) "In California,

fraud must be pled specifically; general and conclusory allegations do not suffice. Thus the policy of liberal construction of the pleadings ... will not ordinarily be invoked to sustain a pleading defective in any material respect. This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered. A plaintiff's burden in asserting a fraud claim against a corporate employer is even greater. In such a case, the plaintiff must allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written." (Lazar v. Superior Ct. (1996) 12 Cal.4th 631, 645 (Lazar), internal quotation marks, paragraph mark, and citations omitted, italics in original.)

BetterHelp argues that Plaintiff fails to plead fraud with the required particularity, alleging no specific representation by BetterHelp, no speaker, and no facts as to when, where, by what means, or that BetterHelp knew any statement was false. BetterHelp contends that merely adding "and BetterHelp" to a vague statement the Court already rejected does not supply particularity, and that the "vetted" and "qualified" representations are too generalized, unattributed, and unaccompanied by any showing of falsity or scienter. BetterHelp argues Plaintiff's fraudulent-concealment theory fails because it owed no duty to disclose and Plaintiff identifies no concealed material fact pleaded with specificity. Plaintiff contends that no law required Pelayo to carry insurance, so any omission on that point was immaterial and causally unconnected to the alleged injury.

In opposition, Plaintiff contends that Defendants intentionally or negligently misrepresented or failed to disclose that Pelayo was unfit and incompetent to treat her. Plaintiff argues BetterHelp represented at the outset that she was in adequate hands and would improve under its treatment, and that these representations were false when made. Plaintiff contends BetterHelp held itself out as providing vetted, qualified, and licensed providers, and that she reasonably relied on those representations in agreeing to treatment she would not otherwise have undertaken. Plaintiff also asserts a constructive-fraud theory premised on the fiduciary relationship she contends existed.

The Court finds the FAC fails to allege sufficient facts to state a cause of action for fraud and deceit. The FAC still fails to allege facts demonstrating BetterHelp knowingly made a false representation to Plaintiff. The

FAC also still fails to allege the means by which any such representation was made, who made the representation, when it was made, or the authority of any person to speak on behalf of BetterHelp. (FAC, ¶¶ 298-344; Lazar, supra, 12 Cal.4th at p. 645.)

Accordingly, the Court SUSTAINS the Demurrer to the Sixth Cause of Action without leave to amend.

Seventh Cause of Action – Sexual Harassment (Civ. Code §51.9)

To state a cause of action for sexual harassment under Civil Code section 51.9, the plaintiff must allege facts demonstrating: (1) “[t]here is a business, service, or professional relationship between the plaintiff and defendant or the defendant holds himself or herself out as being able to help the plaintiff establish a business, service, or professional relationship with the defendant or a third party”; (2) “[t]he defendant has made sexual advances, solicitations, sexual requests, demands for sexual compliance by the plaintiff, or engaged in other verbal, visual, or physical conduct of a sexual nature or of a hostile nature based on gender, that were unwelcome and pervasive or severe”; and (3) “[t]he plaintiff has suffered or will suffer economic loss or disadvantage or personal injury, including, but not limited to, emotional distress or the violation of a statutory or constitutional right, as a result of the conduct described in paragraph (2).” (Civ. Code, § 51.9, subds. (a)(1), (a)(2), (a)(3).)

BetterHelp argues that this claim fails because Plaintiff does not, and cannot, allege that BetterHelp itself made any sexual advance, solicitation, or engaged in any conduct of a sexual nature toward her, as Section 51.9 requires of the defendant. BetterHelp contends the claim depends entirely on imputing Pelayo’s alleged conduct to BetterHelp through respondeat superior and ratification, both of which fail. BetterHelp argues that sexual misconduct falls outside the scope of employment as a matter of law and is not foreseeable, and that the alleged off-camera conduct with an unseen third party has no nexus to the therapeutic relationship. BetterHelp further argues that reassigning Plaintiff to a new therapist is the antithesis of ratification and that continued retention alone does not establish ratification.

In opposition, Plaintiff contends that BetterHelp is jointly liable under agency, ratification, and negligent-supervision principles for the

sexual harassment and resulting harm. Plaintiff argues that BetterHelp ratified Pelayo's conduct by failing to fully investigate or repudiate it and by continuing to allow her to treat patients after being advised of the conduct. Plaintiff contends whether an employer ratified an employee's conduct is generally a factual question unsuited to demurrer. Plaintiff also references the transference phenomenon and the therapist-patient dynamic to argue that Pelayo's misconduct was connected to the therapeutic relationship rather than purely personal.

The Court finds the FAC alleges facts sufficient to state a cause of action for sexual harassment under Civil Code section 51.9. The FAC does not allege that BetterHelp itself engaged in any sexual conduct toward Plaintiff. (See FAC, ¶¶ 345-369.) Also, as noted above, sexual misconduct generally falls outside the scope of any employment or agency as a matter of law. (See *Juarez*, supra, 81 Cal.App.4th at p. 394, disapproved on other grounds by *Brown v. USA Taekwondo* (2021) 11 Cal.5th 204; *Lisa M.*, supra, 12 Cal.4th at p. 301.) However, as set forth above, the FAC alleges sufficient facts demonstrating an employer/employee relationship or principal/agency relationship and ratification. (See C.R., supra, 169 Cal.App.4th at p. 1112 [Civil Code section 51.9 claim survived demurrer on ratification theory where pleading alleged managing agent knew of repeated abuse of patients, engaged in concealment, and retained the abuser].)

Based on the foregoing, the Court **OVERRULES** the Demurrer to the Seventh Cause of Action.

CONCLUSION

The Court **SUSTAINS** Defendant Teladoc Health, Inc., D/B/A BetterHelp, Inc.'s Demurrer to the Sixth Causes of Action of the First Amended Complaint without leave to amend.

The Court **OVERRULES** Defendant Teladoc Health, Inc., D/B/A BetterHelp, Inc.'s Demurrer to the First, Third, Fourth, Fifth and Seventh Causes of Action of the First Amended Complaint.

Defendant Teladoc Health, Inc., D/B/A BetterHelp, Inc. is ordered to file and serve an Answer to the First Amended Complaint within 10 calendar days of this order.

Defendant

Teladoc Health, Inc., D/B/A BetterHelp, Inc. is ordered to give notice of the Court's ruling within five calendar days of this order.